UNITED STATES
NUCLEAR REGULATORY COMMISSION
REGION I
475 Allendale Road.
KING OF PRUSSIA, PA 19406-1415

March 3, 2026

William Mullett,
Corporate Safety Manager
Marshall County Coal Resources, Inc.
46226 National Road
St. Clairsville, OH

SUBJECT: MARSHALL COUNTY COAL RESOURCES, INC.- NRC INSPECTION NO. 03038720/2025001 AND NOTICE OF VIOLATION

Dear William Mullett:

This letter refers to the onsite inspection conducted on September 10, 2025, at your Moundsville, WV facility with continued in-office review through February 11, 2026. This inspection examined activities conducted under your license as they relate to public health and safety, and to confirm compliance with the Commission's rules and regulations and with the conditions of your license. Within these areas, the inspection consisted of a selected examination of procedures and representative records, observations of activities, and interviews with personnel. The results of the inspection were communicated during a debrief onsite on September 10, 2025; and during the telephonic exit meeting held on February 12, 2026.

Based on the results of this inspection, the NRC has determined that two Severity Level IV violations of NRC requirements occurred. These violations were evaluated in accordance with the NRC's Enforcement Policy. The current Enforcement Policy is included on the NRC's Web site at https://www.nrc.gov/about-nrc/regulatory/enforcement/enforce-pol.html. The violations are cited in the enclosed Notice of Violation (Notice) because they were identified by the NRC and include repeated violations related to performing and maintaining records for leakage and/or contamination testing at the required intervals which has not been corrected during three separate inspections.

You are required to respond to this letter and should follow the instructions specified in the enclosed Notice when preparing your response. If you have additional information that you believe the NRC should consider, you may provide it in your response to the Notice. The NRC review of your response to the Notice will also determine whether further enforcement action is necessary to ensure compliance with regulatory requirements.

In accordance with 10 CFR 2.390 of the NRC's "Agency Rules of Practice and Procedure," a copy of this letter and your response, if you choose to provide one, will be made available electronically for public inspection in the NRC Public Document Room or from the NRC document system (ADAMS), accessible from the NRC Web site at http://www.nrc.gov/reading-rm/adams.html. To the extent possible, your response should not include any personal privacy, proprietary, or safeguards information so that it can be made available to the public without redaction.

If you have any questions regarding this matter, please contact Sloan Scott of my staff at (610) 337-5273 or via electronic mail at john.scott@nrc.gov.

Thank you for your cooperation.

Sincerely,

MONICA FORD

Digitally signed by MONICA FORD
Date: 2026.03.03 16:24:41 -05'00'

Monica Ford, Chief
Commercial, Industrial, Research & Development and Academic Branch
Division of Radiological Safety and Security
U.S. NRC Region I

Docket No. 030-38720
License No. 34-35134-01

Enclosure:
Notice of Violation

cc w/ enclosure
Eric Owens, Radiation Safety Officer
Darrick C. Meyer, Plant Manager
State of West Virginia

SUBJECT: MARSHALL COUNTY COAL RESOURCES, INC.- NRC INSPECTION NO. 30-38720/2025001 AND NOTICE OF VIOLATION DATED MARCH 3, 2026.

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OFFICIAL RECORD COPY

NOTICE OF VIOLATION

Marshall County Coal Resources, Inc.
St. Clairsville, OH

Docket No. 030-38720
License No. 34-35134-01

During an NRC inspection conducted on Septemeber 10, 2025, two violations of NRC requirements were identified. In accordance with the NRC's Enforcement Policy, the violations are listed below:

A. NRC License Condition No. 13.A of NRC License No. 34-35134-01, dated May 9, 2024, requires that sealed sources shall be tested for leakage and/or contamination at intervals not to exceed the intervals specified in the certificate of registration issued by the U.S. Nuclear Regulatory Commission under 10 CFR 32.210 or by an Agreement State. In the absence of a registration certificate, sealed sources shall be tested for leakage and/or contamination at intervals not to exceed 6 months, or at such other intervals as specified.

   Contrary to the above, from May 12, 2022 through September 10, 2025, the licensee failed to perform leakage and/or contamination testing at intervals not to exceed those specified in the certificate of registration. Specifically, the licensee conducted leakage and/or contamination testing at frequencies exceeding the six month interval required by the certificate of registration.

   This is a Severity Level IV Violation (NRC Enforcement Policy Section 6.3.d.3).

B. NRC License Condition No. 15 of NRC License No. 34-35134-01, dated May 9, 2024, requires, in part, that the licensee shall conduct a physical inventory every 6 months, or at other intervals approved by the U.S. Nuclear Regulatory Commission, to account for all sealed sources and/or devices received and possessed under the license.

   Contrary to the above, from May 12, 2022 through June 11, 2024, the licensee did not include the bulk analyzer in the physical inventories at the required six month frequency, nor did the licensee obtain NRC approval for an alternative inventory interval. Specifically, the licensee was unable to demonstrate that the physical inventory for the bulk analyzer was being conducted during this period.

   This is a Severity Level IV Violation (NRC Enforcement Policy Section 6.3.d.3).

Pursuant to the provisions of 10 CFR 2.201, Marshall County Coal Resources, Inc. is hereby required to submit a written statement or explanation to the U.S. Nuclear Regulatory Commission, ATTN: Document Control Desk, Washington, D.C. 20555, with a copy to the Regional Administrator, Region I, within 30 days of the date of the letter transmitting this Notice of Violation (Notice). This reply should be clearly marked as a "Reply to a Notice of Violation" and should include for each violation: (1) the reason for the violation, or, if contested, the basis for disputing the violation, (2) the corrective steps that have been taken and the results achieved, (3) the corrective steps that will be taken to avoid further violations, and (4) the date when full compliance will be achieved. Your response may reference or include previous docketed correspondence, if the correspondence adequately addresses the required response. If an adequate reply is not received within the time specified in this Notice, an order or a Demand for Information may be issued as to why the license should not be modified, suspended, or revoked, or why such other action as may be proper should not be taken.

Where good cause is shown, consideration will be given to extending the response time. If you contest this enforcement action, you should also provide a copy of your response to the Director, Office of Enforcement, United States Nuclear Regulatory Commission, Washington, DC 20555-0001. Under the authority of Section 182 of the Act, 42 U.S.C. 2232, any response which contests an enforcement action shall be submitted under oath or affirmation.

Your response will be placed in the NRC Public Document Room (PDR) and on the NRC Web site. To the extent possible, it should, therefore, not include any personal privacy, proprietary, or safeguards information so that it can be made publically available without redaction. However, if you find it necessary to include such information, you should clearly indicate the specific information that you desire not to be placed in the PDR, and provide the legal basis to support your request for withholding the information from the public.

In accordance with 10 CFR 19.11, you may be required to post this Notice within two working days of receipt.

Dated This __3rd_ day of March 2026